

Opinion of the Court

political career.” *Id.*, at 467, 473–475. Unlike the present case, *Keene* involved “more than a ‘subjective chill’” based on speculation about potential governmental action; the plaintiff in that case was unquestionably regulated by the relevant statute, and the films that he wished to exhibit had already been labeled as “political propaganda.” See *ibid.*; *ACLU*, 493 F. 3d, at 663–664 (opinion of Batchelder, J.); *id.*, at 691 (Gibbons, J., concurring).

Monsanto, on which respondents also rely, is likewise inapposite. In *Monsanto*, conventional alfalfa farmers had standing to seek injunctive relief because the agency’s decision to deregulate a variety of genetically engineered alfalfa gave rise to a “significant risk of gene flow to non-genetically-engineered varieties of alfalfa.” 561 U.S., at 155. The standing analysis in that case hinged on evidence that genetically engineered alfalfa “‘seed fields [we]re currently being planted in all the major alfalfa seed production areas’”; the bees that pollinate alfalfa “‘have a range of at least two to ten miles’”; and the alfalfa seed farms were concentrated in an area well within the bees’ pollination range. *Id.*, at 154, and n. 3. Unlike the conventional alfalfa farmers in *Monsanto*, however, respondents in the present case present no concrete evidence to substantiate their fears, but instead rest on mere conjecture about possible governmental actions.

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Respondents also suggest that they should be held to have standing because otherwise the constitutionality of § 1881a could not be challenged. It would be wrong, they maintain, to “insulate the government’s surveillance activities from meaningful judicial review.” Brief for Respondents 60. Respondents’ suggestion is both legally and factually incorrect. First, “[t]he assumption that if respondents have no standing to sue, no one would have standing, is not a reason to find standing.” *Valley Forge Christian College*, 454 U.S., at 489; *Schlesinger*, 418 U.S., at 227; see also *Richard-*